

EX 3094/2023

No representation by DHR

It is noted from the order sheet that, the JDR no.2 has filed a memo stating that the judgment and decree dated 25.09.2023 has been stayed in RFA no. 284/2024 in respect of JDR no.2

From 21.06.2024 the DHR has not appeared before the Court to take effective and coercive steps against JDR No. 1 for the execution of the decree, although no appeal has been reported to have been filed by JDR No. 1.

In the light of the judgment of Apex court in Periyammal through L/Rs Vs Rajamani in Civil Appeal No. 3640-3642/2025 wherein the trial court have been directed to dispose of E.P. within a period of 6 months.

Hence it appears that DHR is not interested to prosecute the above Petition.

Hence the above E.P. is closed with liberty to file fresh E.P. if permissible under law.

XLI Addl. CC & SJ